

District: Narsingdi.

**In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)**

Present:

**Mr. Justice Syed Md. Ziaul Karim
And**

**Mr. Justice K.M. Emrul Kayesh
Death Reference No. 133 of 2017**

The State

-Versus-

Md. Sultan Miah @ Sultan @ Jamai Sultan and
others,

----- Condemned-Prisoners.

Mrs. Momtaz Begum, State Defence Lawyer

---- For the Condemned-Prisoners.

With

Jail Appeal No. 431 of 2017

Md. Sultan Miah @ Sultan @ Jamai Sultan

----- Condemned-prisoner-appellant.

-Versus-

The State,

----- Respondent.

with

Jail Appeal No. 432 of 2017

Shafiqul Islam Sharif @ Shafiqul Alom Sharif

----- Condemned-prisoner-appellant.

-Versus-

The State,

----- Respondent.

with

Criminal Appeal No. 11119 of 2017

Shafiqul Islam Sharif @ Shafiqul Alom Sharif

----- convict-appellant.

-Versus-

The State,

----- Respondent

Mr. Md. Helal Uddin Mollah with

Mr. Selim Ahmed, Advocates

---- For the convict-appellant.

with
Criminal Appeal No. 6371 of 2017
(arising out of Jail Appeal No. 433/2017)

Osman @ Md. Osman Gani
----- Convict-appellant.

-Versus-

The State,

----- Respondent

Mr. Mohammad Shishir Monir, Advocate, with
Mrs. Momtaz Begum, State Defence Lawyer,
---- For the convict-appellant Md. Osman Goni.
Mr. Mohammad Monirul Islam, Deputy-Attorney-
General with
Mr. Robiul Islam, Assistant-Attorney-General,
Ms. Ayesha Flora, Assistant-Attorney-General
Mr. Md. Jahir Ahmed, Assistant-Attorney-General
and
Mr. Mohammad Shafayet Zamil, Assistant-
Attorney-General

---- For the State.

Heard on 29.10.2023, 31.10.2023.

and

Judgment delivered on: 06.11.2023.

K.M. Emrul Kayesh, J:

(1) This Death Reference under section 374 of the Code of Criminal Procedure (hereinafter referred to as Code) has been submitted by the learned Bicharak, Nari-O-Shishu Nirjatan Daman Tribunal, Narsingdi (hereinafter referred to as Tribunal) for

confirmation of the sentence of Death imposed upon the condemned prisoners namely (1) Md. Sultan Miah @ Sultan @ Jamai Sultan, son of late Hossain Ali Bepari, (2) Md. Shafiqul Islam Sharif @ Shafiqul Alom Sharif, son of Ali Hossain and (3) Osman @ Md. Osman Goni, son of late Abdul Motalib in Nari-O-Shishu Case No. 11 of 2016 dated 04.10.2017, arising out of Shibpur Model Police Station Case No. 03 dated 02.02.2015, corresponding to G.R. Case No. 39 of 2015 under section 302 read with section 34 of the Penal Code, and further convicting the same accused under section 201 of the Penal Code and sentencing them to suffer rigorous imprisonment for a period of 7(seven) years and also to pay a fine of taka 10000(ten thousand) in default to suffer imprisonment for a further period of 03(three) months.

- (2) By the self-same Judgment the learned Tribunal, Narsingdi, further convicted the condemned-prisoner Md. Sultan Miah @ Sultan @ Jamai Sultan, son of late Hossain Ali Bepari under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) and sentenced thereunder him to suffer imprisonment for life with pay a fine of taka 10,0000/- (one lakh) in default to suffer imprisonment for a period of 1(one) year more.
- (3) By the above Death Reference and appeals the condemned-prisoners and appellants have challenged the legality and propriety of the judgment and order of conviction and sentence dated 04.10.2017 passed by the learned Nari-O-Shishu Nirjatan Daman Tribunal, Narsingdi in Nari-O-Shishu Case No. 11 of 2016 convicting the condemned prisoners namely (1) Md. Sultan Miah @

Sultan @ Jamai Sultan, son of late Hossain Ali Bepari, (2) Md. Shafikul Islam Sharif @ Shafikul Alom Sharif, son of Ali Hossain and (3) Osman @ Md. Osman Goni, son of late Abdul Motalib, under sections 302 and 34 of the Penal Code and sentencing them to death and further convicted the condemned-prisoner Md. Sultan Miah @ Sultan @ Jamai Sultan, son of late Hossain Ali Bepari under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) and sentenced thereunder him to suffer imprisonment for life with pay a fine of taka 10,0000/- (one lakh) in default to suffer imprisonment for a period of 1(one) year more and further convicting the same accused under section 201 of the Penal Code and sentencing them to suffer rigorous imprisonment for 7(seven) years and with pay a fine of taka 10000(ten thousand) in

default to suffer a further period of 03(three) months imprisonment.

- (4) The death reference and the above appeals having arisen out of a common judgment dated 04.10.2017, in Nari-O-Shishu Case No. 11 of 2016, these have been heard together and are being disposed of by a single judgment.
- (5) The prosecution case as projected in the First Information Report (hereinafter referred to as FIR) and unfurled during the trial is that one S.I. Mizanur Islam as an informant lodged an FIR with Shibpur Model Police Station alleging inter alia that on 02.02.2015, while he was on special duty then the duty officer of the concerned Police Station informed him over a mobile phone that a dead body of an unknown woman was lying at Safuria village and requested to take legal action in this regard. On 02.02.2015 at

about 12.05 hours on the basis of the said information he along with police personnel went to the place of occurrence and saw the dead body, while he asked to the witnesses who were on present regarding the dead body but nobody identified her, thereafter in presence of the witnesses on the basis of GD entry, he prepared an inquest report over the dead body of the deceased, at the time of preparing inquest report found some injuries on the person body of the deceased. Then, the dead body of the deceased was sent to the morgue of Narsingdi Sadar Hospital for holding autopsy. He further mentioned in the First Information Report that the woman was killed by unknown assailants on 01.02.2015 at any time during evening to morning on 02.02.2015 by cutting of throat and left the dead body in the place of occurrence and fled away, there are some

delays caused in lodging the FIR due to his duty, hence the case. Whereupon a Shibpur Police Station Case No. 03 dated 02.02.2015 was started.

- (6) After lodging of the FIR the officer-in-charge of Shibpur Police Station entrusted to one Sub-inspector of police Syed Mizanur Islam to hold the investigation of this case. On receiving the responsibility to hold investigation he visited the place of occurrence and prepared sketch map and index, and examined the witnesses under section 161 of the Code. He arrested accused Md. Sultan Miah @ Sultan @ Jamai Sultan, Md. Shafikul Islam Sharif @ Shafikul Alom Sharif and Osman @ Md. Osman Goni, on 09.02.2015 and forwarded them before the Chief Judicial Magistrate, Narsingdi with a prayer for recording of their confessional statement under section 164 of the Code. On

the same date, 3(three) condemned-prisoners made confessional statement under section 164 of the Code before the Magistrate, Narsingdi in connection with Shibpur Model Police Station Case No. 3 dated 02.02.2015 corresponding to G.R. Case No. 39 of 2015.

- (7) After holding investigation the Police submitted charge sheet being No. 199 dated 14.08.2015 against the condemned-prisoner Sultan under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) and all the three condemned-prisoners against under section 302, 201 and 34 of the Penal Code.
- (8) Thereafter, the case was transmitted to Nari-O-Shishu Nirjatan Daman Tribunal, Narsingdi, who after receiving the case record framed charge against the convict appellant Sultan under section 9(1) of the

Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) and the charge framed against the condemned-prisoners namely Sultan, Md. Shafikul Islam Sharif, and Md. Osman Goni under sections 302, 201 and 34 of the Penal Code. Thereafter, the charge was read over and explained to them to which they pleaded not guilty and claimed to be tried.

- (9) In course of trial the prosecution in all examined as many as 24 witnesses out of 30 charge sheet named witnesses.
- (10) After closure of the evidence of the prosecution the condemned prisoners on dock were examined under section 342 of the Code when the trial court drew their attention to the incriminating materials appearing against them one by one and they repeated their innocence and led no evidence as defence.

(11) The defence case as it transpires from the trend of cross-examination of the prosecution witnesses are that of innocence and false implication, it was further divulged in defence that they were falsely implicated in this case out of suspicion.

(12) After plenary trial of the case the learned tribunal came to a conclusion and convicted and sentenced the condemned-prisoners as aforesaid holding:

(a) The prosecution successfully proved the charge against them by producing sufficient corroborative evidence.

(b) The evidences led against the appellants were consistent, uniform and corroborative in nature.

(c) The confessional statement made by the condemned-prisoners were true and voluntary.

- (13) Feeling aggrieved by and dissatisfied with the impugned Judgment and order of conviction and sentence of the condemned prisoners preferred the instant Jail appeals and regular appeals.
- (14) Mr. Mohammad Monirul Islam, the learned Deputy-Attorney-General assisted by Mr. Robiul Islam, Mst. Ayesha Flora, Mr. Md. Jahir Ahmed, and Mr. Mohammad Shafayet Zamil, the learned Assistant-Attorney-Generals appearing for the state supports the Death reference and submitting that the learned tribunal by the impugned judgment and order of conviction and sentence rightly convicted the appellants relying upon the evidences of 24 witnesses and their confessional statement. They categorically narrated the manner of occurrence as well as corroborative evidences against them. Therefore, the learned tribunal came to a

definite finding that all the convict-appellants participated and committing the brutally murder of the deceased on the date of occurrence. He further adds that all the condemned-prisoners made confessional statement involving themselves with killing of the deceased, wherein they categorically stated as to how they participated in the killing mission of the deceased though the accused Md. Osman Goni retracted his confessional statement which was not considered by the trial court as his confessional statement was recorded by the Magistrate which was true and voluntary. He lastly submits that the prosecution successfully proved the charge levelled beyond all reasonable doubt. Therefore, the judgment in question does not call for interference by this court in appeals.

(15) Mr. Helal Uddin Mollah, the learned Advocate appearing for the condemned-prisoner Shafiqul Islam Sharif and Md. Sultan Miah have assailed the impugned judgment culling out points as follows:

(I) The case is of no evidence and there is no eye witness of the case and the confessional statement of the condemned-prisoners were not recorded in observing all the legal formalities and as such the impugned judgment is not sustainable in law.

(II) The prosecution has completely failed to prove the motive of killing the deceased. The condemned-prisoners did not share the intention of killing the deceased with each other. Therefore, the impugned Judgment is based on conjecture and surmise without any legal evidence.

(III) The investigating officer is very much interested as the informant and investigating

officer is the same person; though more than one Sub-inspector was working at the relevant time in the concerned Police Station.

(IV) The facts and circumstances and the evidences as emerged by the cross-examination of the condemned-prisoners, should be taken into consideration with other evidences on record. The learned court below did not examine the condemned-prisoners as required under section 342 of the Code, and confessional statement was not brought into notice during examination of the condemned-prisoners under section 342 of the Code and therefore he has prayed for rejected the death judgment as well as allowing the appeals setting-aside the judgment in question.

(16) Mr. Shishir Monir, along with Mrs. Momtaz Begum, the learned advocates appearing for

the condemned-prisoner Md. Osman Gani submits that the case is no evidence one. None of the prosecution witnesses are the eye witnesses of this case. The learned Court below arrived at a decision only relying upon the confessional statement of the condemned-prisoners. He further submits that the confessional statement of the condemned prisoners were not congruent with the evidence of prosecution witnesses. Because, all the witnesses were the seizure list witnesses and the rest witnesses were official and medical witnesses. He next submits that the incident of murder of the deceased did not take place by a preplanned manner. The confessing accused Shafikul Islam Sharif clearly mentioned in his confessional statement that the plan of killing of the deceased Mahmuda did not share with other two condemned-prisoners.

Moreover, the condemned-prisoner Md. Osman Gani caught hold on the person body, leg and waist of the victim at the time of slaughtering the deceased Mahmuda. He further submits that the condemned-prisoner Md. Osman Goni did not catch hold vital parts of the deceased Mahmuda. Over and above he did not deal a blow with a knife on the person body of the deceased Mahmuda. He also submits that the prosecution story is not believable because the condemned-prisoner Shafiqul stated in his confessional statement that he could not cut the throat of the deceased by a knife because his right hand was broken. At the fag-end of his submission that if the court finds them guilty. Then the court could consider their sentence commuting one because they are the first time offender. Besides that they are comparatively young

and strongly prayed for allowing the appeal **mentioning** setting-aside the judgment in question.

(17) To appreciate the evidences on record and the submission of the learned Advocates, we have to examine the evidences adduced by the prosecution as under:

(18) PW-1 Syed Mizanur Islam, SI Shibpur Police Station, Narsingdi deposed that he is the informant of this case. He stated that on 02.02.2015, while he was on special duty along with member of his raiding party under Shibpur Police Station then the duty officer informed him over a mobile phone that a dead body of unknown woman was lying at Safuria village and requested him to take legal action, on 02.02.2015 at about 12.05 hours on the basis of the said information he along with members of his raiding party went to the place of occurrence

and saw the dead body. Then, he asked to the witnesses about the dead body of the deceased woman but none identified her, thereafter in presence of witnesses on the basis of GD entry being No. 56 dated 02.02.2015, he prepared an inquest report on the dead body of the deceased, and sent the dead body to the morgue of Sadar Hospital, Narsingdi for performing autopsy. Thereafter, he lodged an First Information Report with Shibpur Police Station, hence this case. He proved the First Information Report and his signature thereon marked ext. as 1 and 1/1 respectively.

- (19) In cross examination he admitted that he went to the place of occurrence by a GD entry by which he along with his raiding party members came out on special duty from the concerned police station. On their special duty he received an information

about lying an unknown dead body of a woman and requested to take necessary action. Thereafter, he went to the place of occurrence and prepared an inquest report over the cadaver.

(20) He denied a suggestion that he ought to have lodged the First Information Report having reached to the concern police Station. He denied a suggestion that he manipulated the First Information Report by inserting G.D entry number thereon.

(21) PW-2 Md. Ajmal Hossain stated that he is the witness of inquest report prepared on 02.02.2015 at about 12.15 hours he went to the place of occurrence having received news that a dead body of a woman was lying on the bank of a river. Thereafter, the police prepared an inquest report and took his signature on it. He proved the inquest report

and his signature thereon marked as ext. 2 and 2/1 respectively.

(23) In cross examination he admitted that he did not know what was written in the inquest report.

(24) PW-3 Md. Shafiqul Islam stated that he is the witness of inquest report. He heard a news that a dead body of an unknown woman was lying on the bank of a river, while he was collecting fodder of his cattle, where he rushed to the place of occurrence having heard hue and cry at that time the police prepared an inquest report and took his signature thereon marked as ext. 2/2.

(25) He admitted in his cross examination that he put his signature on the inquest report but he did not know as to how the victim had killed.

(26) PW-4 Asad deposed that he is also the witness of the inquest report and he further

stated that he went to the place of occurrence having heard the news of a dead body of woman was lying on the bank of a river and the police prepared an inquest report and put his signature thereon marked as ext. 2/3.

(27) He admitted in his cross-examination that he put his signature on the inquest report but the investigating officer did not read over the contents of the inquest report to him. He also proved the inquest report and his signature thereon marked ext. as 2/4.

(28) In cross examination he stated that he put his signature but the police did not read over the contents of the inquest report.

(29) PW-5, Jahangir Alam stated in his deposition that he was witness of the inquest report, on 02.02.2015 he went to the place of occurrence having received an information that a dead body of a woman,

was lying in a paddy field of Abdul Mannan. At 12.00 hours the police came to the place of occurrence and prepared an inquest report over the cadaver and collected his signature thereon marked as ext. 2/4.

In cross-examination he admitted that the contents of the inquest report did not read over to him.

- (30) PW-6, Delowar stated in his deposition that he is the witness of the inquest report. He also stated that the investigating officer came to the place of occurrence and prepared an inquest report collecting his signature thereon marked ext. as 2/5 and he seized some alamots by collecting materials and personal belongings to the deceased i.e. bloodstained earth, bloodstained gunny bag and one pair of sandal and an ash coloured monkey cap and prepared a seizure list which has been

marked as materials ext. I, II, III, IV, V, VI and VII. He further stated that the investigating officer prepared a seizure list and collected his signature thereon marked ext. as 3 and 3/1 respectively.

He denied a suggestion that he procured the Alamats and then handed those over to the investigating officer, and that he put his signature on the seizure list without understanding the consequence of the seizure list.

- (31) PW-7, Syed Abdus Salam stated that he is the witness of the inquest report. He proved the seizure list and his signature thereon ext. 4 and 4/1 respectively and seized some personal belongings which was being used by the deceased before her death. The alamats have been marked as materials ext. VIII. He denied a suggestion that he did not see to prepare the inquest report.

(32) PW-8, Md. Mokhlechhur Rahman deposed that on 02.02.2015 after having given up his bed heard that a slaughtering dead body of a woman was lying at a ridge of paddy field when he rushed to the place of occurrence and found the dead body with throat cut injury and bloodstained grass and bloodstained gunny bag. Thereafter, the investigating officer prepared a seizure list thereof and collected signature of the witnesses.

He admitted in his cross examination that he did not know as to how the deceased was killed.

(33) PW-9, Golzar stated in court that he is the witness of seizure list. The investigating officer recovered some personal belongings of the deceased and prepared a seizure list and collected his signature thereon marked as ext. 5 and 5/1 respectively and further

collected some personal belongings which has been marked as materials ext. I, II and III. He admitted that he did not know the deceased earlier. He denied a suggestion that he put his signature without having gone through the seizure list.

- (34) PW-10, Constable Aftab Uddin being No. 329 deposed that on 02.02.2015 he went to the place of occurrence with SI Syed Mizanur Islam found a throat cut dead body of a woman and was entrusted to send the dead body of the deceased to Sadar Hospital, Norsingdi for autopsy. After holding post mortem over the dead body she was buried through Anjuman Mofidul Islam a charitable organization as finding no claimant of the dead body. Thereafter, S.I. Syed Mizanur Islam prepared a seizure list and collecting some materials from the place of occurrence and took his signature thereon marked as

ext. 5/2. The investigating officer went to the residence of the deceased under Kishoregonj District and recovered a birth certificate, which he was seized and prepared a seizure list and collected his signature thereon marked ext. as 6/2. He proved his signature, one challan, and Command Certificate and his signature on the challan marked as ext. 7 and his signature thereon marked as ext. 7/1 and command certificate marked as ext. 8 and his signature thereon marked as ext. 8/1 and another signature thereon marked as ext. 8/2.

(35) PW-11, Constable Abdul Jobbar being No. 1465 (previous Constable No.437) stated that on 02.02.2015 he was attached with Shibpur Police Station on the said date, he went to the place of occurrence with the investigating officer Syed Mizanur Islam and he along with the investigating officer having

reached in the place of occurrence found a throat cut dead body of a woman, thereafter he came to know the name of the victim was Mahmuda, on 09.02.2015 the investigating officer arrested 3(three) accused persons and at the pointing of accused Sultan recovered a knife from a river and prepared a seizure list and put his signature thereon marked as ext. 4/2. He denied a suggestion that the knife was not recovered at the pointing of the accused Sultan, and that he was deposing falsely for developing of the case.

(36) PW-12, Constable Md. Mizanur Rahman being No. 853, testified that on 02.02.2015 he went to the place of occurrence with the investigating officer and recovered a throat cut dead body of a woman and lady constable Ruma helped SI Syed Mizanur Islam to prepare an inquest report. He

denied a suggestion that he did not hear the victim was killed having rape.

- (37) PW-13, Constable Sharif being No. 1304 stated that he was serving on 02.02.2015 as Constable of Shibpur Police station on the date of occurrence. He was on special duty with SI Syed Mizanur Islam, on duty his team leader SI Syed Mizanur Islam received an information that an unknown dead body of a woman was lying with throat cut injury at Safuria village on the bank of the river Kalagachia. Thereafter, at 12.05 hours, he with SI Syed Mizanur Islam went to the place of occurrence and found the dead body of an illfated woman. He further stated that he found the private part was wet of the deceased at the time of arriving there where a lady Constable helped them to prepare an inquest report. He stated that two injuries were found on the lower abdomen of the

deceased and recovered an ID card from the deceased, which was attached with her waist and prepared an inquest report at about 12.05 hours by the SI Syed Mizanur Islam and sent the dead body to morgue for performing autopsy.

(38) He stated in his cross examination that he found the dead body with throat cut injury of a woman. He denied a suggestion that he was deposing falsely of this case.

(39) PW-14, Dr. Syed Amirul Haque, stated in his deposition that on 03.02.2015 at about 2.30 hours he received a dead body of an unknown woman aged about 28 years through a Constable Md. Aftab Uddin being No. 329, whereupon he formed a three members committee to hold autopsy over the dead body of the deceased. They found the injuries on the body of the deceased as under:

Incised injury in Mentis and Mandible about 4"X1" bone cut.

Cut throat injury about 6"X4"X $\frac{1}{2}$ thickness of neck region.

Abrasion in lower abdomen 3(three) one is 5", Two are 10" length.

আমার ১১নং কলামে উল্লেখ করেছি যে, Unhealthy but roomy unusual semens like substance in vulvo vaginal area.

আমার মতামত প্রদান করি নিম্নরূপ

“In our opinion Death was due to shock and hemoerrage resulting from cut throat injuries which was ante mortem and homicidal in nature and she has undergone sexual intercourse prior to her Death.” and he identified post mortem report and his signature thereon marked as ext. 9 and 9/1 respectively.

(40) In cross examination he stated that sexual intercourse was made on the body of the

victim. He denied a suggestion that the post mortem report was not performed in accordance with medical jurisprudence.

(41) PW-15 Md. Abdul Jalil, testified that on 09.02.2015 he went to the place of occurrence with the investigating officer Syed Mizanur Islam and seized three mobile phones and prepared thereof a seizure list and collected his signature thereon marked as ext. 10 and his signature thereon marked as ext. 10/1 and some alamats i.e. L.G. mobile phone which was marked as materials ext. IV and another mobile phone which was seized and prepared a seizure list marked as materials ext. V and symphony mobile phone was recovered which was seized and prepared a seizure list which has been marked as materials ext. VI.

(42) In cross examination he stated that the signature was taken first thereafter mobile phone was produced before him.

(43) PW-16, Alamgir Al Mamun Judicial Magistrate, Narsingdi who recorded the confessional statement of the condemned-prisoners. He stated that on 09.2.2015, he had been working as Judicial Magistrate, under Chief Judicial Magistrate, in Narsingdi District on the same date. S.I Syed Mizanur Islam produced the accused namely Shafikul Islam Sharif for recording his confessional statement at 12.30 hours. Thereafter he recorded his confessional statement giving all opportunities as provided by law whereafter he (Shofiqul) agreed to make confessional statement and it was recorded by him. He proved the confessional statement and his signature thereon ext. as 11 and 11 series respectively.

Confessional statements of Shafiqul Islam Sharif is reproduced as under:

“আমি ১০ বছর যাবৎ রিক্সা চালিয়ে জীবিকা নির্বাহ করি। আমি বিবাহিত। বউয়ের সাথে ঝগড়া হয় বিধায় সে আমার সাথে থাকে না। মাহমুদার (ভিকটিম) সাথে আমার দেড় বছর পূর্বে পরিচয় হয়। সে দেহ ব্যবসা করে। কিশোরগঞ্জ সদর রেলওয়ে স্টেশনের পাশে এক ভাড়া বাসায় মাহমুদা থাকতো। আমি তাকে মাঝে টাকার বিনিময়ে এনে আনন্দ ফুটি করতাম। তার সাথে আমি অনেকবার দৈহিক মিলন করেছি। মাহমুদার প্রতি আমার দুর্বলতা সৃষ্টি হয়। আমি তাকে ভাল হয়ে যেতে বলি এবং দেহ ব্যবসা ছেড়ে আমাকে বিয়ে করতে বলি। কিন্তু সে রাজি হয় নাই। বেশ কিছুদিন পূর্বে মাহমুদাকে নিয়ে আমার রিক্সা চালক বন্ধু সুলতানের রিক্সায় চড়ে ছিলাম। সেদিন মাহমুদার সাথে সুলতানের পরিচয় হয়। পরবর্তীতে সুলতানের সাথেও টাকার বিনিময়ে মাহমুদার দৈহিক সম্পর্ক হয়। মাহমুদা আমার কথা অমান্য করে বিভিন্ন লোকদের সাথে টাকার বিনিময়ে দৈহিক সম্পর্ক করতো যা আমি কোন ভাবেই মানতে পারছিলাম না। আমি মাহমুদাকে এই লাইন ছেড়ে দিতে অনেক অনুরোধ করেছি। যার ফলশ্রুতিতে সে আমার সাথে যোগাযোগ কমিয়ে দেয়। আমি সিদ্ধান্ত নেই আমি তাকে খুন করবো। আমার স্ত্রীর খালাতো ভাই ওসমানের সাথেও মাহমুদার মেলামেশা ছিল। গত ০১/০২/১৫ ইং তারিখ আমি আমার ঘরে থাকা একটি ছোট ছুরি কোমরে নিয়ে বের হই। মাহমুদাকে ফোন করে আসতে বলিলে সে বলে তার কাজ

আছে। তখন মাহমুদাকে আনানোর ব্যবস্থা করার জন্য আমি সুলতানকে বলি। সুলতান মাহমুদাকে ফোন করে আসিতে বলিলে ২০০০ টাকার বিনিময়ে মাহমুদা রাজি হয়। আমার এলাকায় কোন ঘটনা ঘটিলে মানুষজন আমাকে সন্দেহ করতে পারে বিধায় আমি সিদ্ধান্ত নেই মাহমুদাকে নরসিংদী জেলার শিবপুরস্থ ওসমানের এলাকায় নিয়ে যাবো। সেই উদ্দেশ্যে দুপুর ২টার দিকে আমি ওসমানকে ফোন দিয়ে বলি যে, সন্ধ্যায় আমি ও সুলতান একটি মেয়ে নিয়ে আসিবো এবং রাত আনন্দ ফুটি করবো। ওসমান মাহমুদাকে চিনিত না কিন্তু তাকে নিয়ে আমি পূর্বেও পতিতালয়ে গিয়েছি। তাই ওসমান আমার কথায় রাজি হয়। দুপুর ২.৩০ ঘটিকায় কিশোরগঞ্জ সদর হইতে একটি CNG যোগে আমি সুলতান ও মাহমুদাকে নিয়ে শিবপুরস্থ ইটাখোলায় আসি। ওসমানকে ফোন দিলে সে জানায় সে বড়ইতলা আছে। আমরা সিএনজি যোগে বড়ইতলা যাই। বড়ইতলায় ওসমানের সাথে দেখা হলে সে বলে একটি সিএনজি নিয়ে পুরানদিয়া নেমে হেটে সফরিয়াস্থ কলাগাছিয়া নদীর পাড়ে ক্ষেতের (ধানী জমি) মধ্যে চলে যেতে। সে দিকে নিরিবিলি স্থান, লোকজন নাই। ওসমান পরবর্তীতে আসবে বলে সে চলে যায়। আমি, সুলতান ও মাহমুদাকে নিয়ে রাত অনুমান ৮.৩০ টার দিকে কলাগাছিয়া নদীর পাড়ে যাই। নদীর পাড়ে একটি ক্ষেতের মধ্যে মাহমুদাকে গুয়াইয়া সুলতান প্রথমে দৈহিক মিলন করে। সুলতান মাহমুদার শরীর থেকে নেমে গেলে আমি মাহমুদার শরীরের উপর উঠি। কিন্তু আমি কিছু করি নাই। আমি আমার কোমপ থেকে লুকানো ছুরি বের করি। সুলতান যখন মাহমুদার

শরীরের উপর ছিল তখন ওসমান আসে এবং সুলতান মাটিতে কাজ করতেছে দেখে সে শরীরের নিচে বিছানোর জন্য শিম ক্ষেতের পাশে থাকা ছালার চট আনতে যায়। মাহমুদা ভেবেছিল আমি তার সাথে দৈহিক মিলন করবো। কিন্তু আমি আমার মনের ভিতরে থাকা গোপন পরিকল্পনা মতো ছোট ছুরি দিয়ে বাম হাতে মাহমুদার গলায় পোছ মারি। আমার ডান হাত ভাঙ্গা। বাম হাতে ভালভাবে গলা কাটতে পারছিলাম না। তখন একটু দূরে বিশ্রামরত সুলতান দৌড়ে এসে ঘটনা দেখে আমার হাত থেকে ছুরি নিয়ে সুলতান ও মাহমুদার গলায় আরো কয়েকটি পোছ মারে। আমি তখন মাহমুদার গায়ে ও হাতে চেপে ধরে রাখি। ওসমান ও তখন উপস্থিত ছিল। ওসমান মাহমুদার কোমরে ও পায়ে চেপে ধরে রেখেছিল। মাহমুদাকে খুন করার পরিকল্পনাটি আমি পূর্বে সুলতান বা ওসমানকে জানাই নাই। কিন্তু আমি যখন ছুরি চালিয়েছি তখন পরিস্থিতিগত কারনেই সুলতান ও ওসমান হত্যা কাজে জড়িয়ে পড়ে। আমরা তিন জন মাহমুদার লাশ সেখানেই ফেলে রেখে বাড়িতে চলে আসি। এই আমার জবানবন্দি। ”

(44) The confessional statement of Md. Sultan Miah is reproduced below:

“আমি রিক্সা চালিয়ে জীবিকা নির্বাহ করি। আমার স্ত্রী সন্তান আছে। শরীফ আমার বন্ধু। বেশ কিছুদিন পূর্বে শরীফ মাহমুদা নামের একটি মেয়েকে নিয়ে আমার রিক্সায় উঠেছিল। মেয়েটি দেহ ব্যবসা করতো। আমার সাথে তার পরিচয়ের পর থেকে আমিও তার সাথে টাকার বিনিময়ে দৈহিক মিলন

করতাম। শরীফ ও মাঝে মাঝে মাহমুদার সাথে দৈহিক মিলন করতো। গত ১/২/১৫ইং তারিখ শরিফ আমাকে ফোন করিয়া বলে যে, মাহমুদাকে আজকে ভাড়া করিয়া নিয়া শিবপুরস্থ ওসমানের এলাকায় যাবে ও রাতে আনন্দ ফুটি করবে। ওসমান শরীফের দুঃসম্পর্কের শ্যালক হন। আমি মাহমুদার সাথে কথা বলিয়া তাকে রাজি করাই। মাহমুদাকে ২০০০/- (দুই) হাজার টাকা দেওয়ার কথা ছিল। দুপুরে মাহমুদা আসিলে তাকে নিয়ে আমি ও শরীফ সিএনজি যোগে কিশোরগঞ্জ সদরে যাইয়া সেখান থেকে সন্ধ্যায় শিবপুরস্থ ইটাখোলা মোড়ে যাই। শরীফ ওসমানকে ফোন দিলে ওসমান আমাদেরকে বড়ইতলা আসিতে বলে। আমরা আবার সিএনজি যোগে বড়ইতলা যাই। বড়ইতলায় ওসমানের সাথে দেখা হলে শরীফ ওসমানকে জিজ্ঞেস করে রাতে কোথায় আনন্দ ফুটি করা যাবে। ওসমান আমাদের বলে যে বড়ইতলা থেকে সিএনজি নিয়ে পুরানদিয়া বাজারে নেমে পায়ে হেটে সফরিয়াস্থ কলাগাছিয়া নদীর পাড়ে চলে যেতে। রাতের বেলা সেখানে কোন লোকজন থাকে না। ওসমান কিছুক্ষন পরে আসিবি বলিয়া চলে যায়। শরীল আমাকে ও মাহমুদাকে নিয়ে কলাগাছিয়া নদীর পাড়ে একটি ক্ষেতের মধ্যে মাহমুদাকে শুয়াইয়া দৈহিক মিলন করি। আমার দৈহিক মিলনের শেষে দিকে ওসমান আসিয়া মাটির উপরে কাজ করতেছি দেখিয়া শরীরের নিচে বিছানোর জন্য একটু দূরের শিম ক্ষেতের পাশে থাকা ছালার চট আনতে যায়। আমার কাজ শেষ হওয়ার পর আমি মাহমুদার শরীর থেকে নেমে ৬/৭ দূরে গিয়ে মাটিতে বসে বিশ্রাম নিচ্ছিলাম। তখন শরীফ মাহমুদার গায়ের

উপর উঠে। কিন্তু ১ মিনিটের মধ্যেই দেখি মাহমুদা চিৎকার করছে এবং শরীফ মাহমুদার শরীরের উপরেই আছে। আমি দৌড়ে কাছে গিয়ে দেখি একটি ছোট চুরি দিয়ে মাহমুদার গলায় পোছ দিচ্ছে এবং মাহমুদা ছুটে যাওয়ার চেষ্টা করছে। আমি চিন্তা করলাম মাহমুদা বেটে গেলে আমরা সকলেই ফেসে যাবো তাই আমি নিজেই শরীফের বাম হাত থেকে চুরি নিয়ে আমিও মাহমুদার গলায় পোছ দিলাম। শরীফ মাহমুদার গায়ে ধরে রেখেছিল। আমাদের সাথে ওসমানও ছিল। সেও কিছু বুঝে উঠতে না পেরে মাহমুদার কোমরে ও গায়ে চেপে ধরে রাখে। মাহমুদা মারা যাওয়ার পর আমরা তাড়াতাড়ি পালিয়ে যাই। পালিয়ে যাওয়ার সময় নদীতে ছুরিটি ফেলে দেই। আমার হাতে যে রক্ত লেগেছিল তা আমি ঘটনাস্থলে থেকে একটু দূরে রোয়া ক্ষেতে আইলের পানি দিয়ে ধুয়েছিলাম। এই আমার জবানবন্দি। ”

(45) The confessional statement of Md. Osman is reproduced below:

“আমি পিকআপ চালিয়ে জীবিকা নির্বাহ করি। শরীফ আমার চাচাতো খালাতো বোনের জামাই। আমি তাকে দুলাভাই ডাকি ও তার সাথে বিভিন্ন জায়গায় ঘোরাফেরা করি। গত ০১/২/১৫ ইং তারিখ দুপুর বেলা শরীফ তার মোবাইল (০১৬২৪৫৩৩৭৩৬) থেকে আমার মোবাইলে (০১৬২৪৫৩৬৬৭৬) ফোন দিয়ে বলে যে, সে ও সুলতান সন্ধ্যায় একটি মেয়ে নিয়ে আসবে এবং আনন্দ ফুটি করবে। আমি তার প্রস্তাবে রাজি হই

এবং মেয়ে নিয়ে চলে আসতে বলি। সুলতান আমার পূর্ব পরিচিত। শরীফের মাধ্যমেই সুলতানের সাথে পরিচয় হয়। সুলতান ও শরীফ পরস্পর বন্ধু। আমি ঐ দিন সন্ধ্যায় বড়ইতলা ছিলাম। সন্ধ্যায় শরীফ আমাকে ফোন দিয়ে বলে, সে, সুলতান ও মাহমুদা নামে একটি পতিতাকে নিয়ে কিশোরগঞ্জ থেকে শিবপুর ইটাখোলা এসেছে। আমি তাদেরকে বড়ইতলা আসতে বলি। তারা সকলে বড়ইতলা আসিলে আমি শরীফকে বলি সিএনজি দিয়ে পুরানদিয়া বাজার গিয়ে সেখান থেকে পায়ে হেটে সফরিয়া এলাকাস্থ কলাগাছিয়া নদীর পাড়ে নিরিবিলি স্থানে চলে যেতে। সেখানে কোন লোকজন যায় না। মেয়ে নিয়ে নিশ্চিন্তে কাজ করা যাবে। শরীফ তার মাথার শীতের টুপি খুলে মাহমুদাকে দিয়ে দেয় ও তারা সিএনজি নিয়ে নদীর পাড়ের উদ্দেশ্যে চলে যায়। আমি পিক আপের মালিককে হিসাব বুঝাইয়া দিয়া দ্রুত সেখানে আসিতেছি বলিয়া মালিকের কাছে চলে যাই। মালিকের কাছে হিসাবের টাকা বুঝাইয়া দিয়া দ্রুত কলাগাছিয়া নদীর পাড়ে রাত অনুমান ৮.৪৫ ঘটিকার দিকে পৌছাই। আমি সেখানে গিয়ে দেখি নদীর পাড়ে একটি ক্ষেতের মধ্যে মাটিতে শুয়াইয়া সুলতান মাহমুদার সাথে দৈহিক মিলন করিতেছে এবং শরীফ পাশে দাড়িয়ে আছে। গায়ে যেন মাটি না লাগে সেজন্য একটু দূরে শিম ক্ষেতের পাশ থেকে আমি শরীরের নিচে বিছানোর জন্য কিছু ছালার চট আনতে যাই। ৩/৪ মিনিটের মধ্যে ফিরে এসে দেখি শরীফ বাম হাতে মাহমুদার গলায় পোছ দিচ্ছে এবং মাহমুদা গোঙ্গানীর মতো শব্দ করছে তখন সুলতান শরীফের হাত থেকে ছুরি নিয়ে সুলতান ও মাহমুদার

গলায় পোছ দিয়েছে। সেই মুহূর্তে আমি ভাবলাম মাহমুদা যদি বেচেন থাকে তাহলে আমাদের নাম বলে দিবে। তাই আমিও কোন দেরি না করে মাহমুদার কোমরে ও পায়ের মধ্যে চেপে ধরি। শরীফও মাহমুদাকে চেপে ধরে। এভাবে মাহমুদাকে জবাই করার পর আমরা লাশ সেখানেই ফেলে রেখে পালিয়ে আসি। মোবাইল নম্বরটি দিয়ে কথা বলা হয়েছে যা থেকে পুলিশ কোন তথ্য পেতে পারে তাই আমি পালিয়ে আসার সময় মাহমুদার ব্যবহৃত মোবাইলটি নিয়ে নেই। কলাগাছিয়া নদীতে মোবাইলটি ফেলে দিয়েছিলাম। এই আমার জবানবন্দি। ”

- (46) He denied a suggestion that the confessional statement was not recorded in compliance with the provision of sections 164 and 364 of the Code. He further stated that another condemned-prisoner Md. Sultan Miah was also produced on 09.02.2015 by the investigating officer at 12.30 hours and his confessional statement was also recorded after giving all opportunities as provided by the Code. Thereafter, he recorded his confessional statement and collected the signature of the

accused thereon. He proved the confessional statement of Md. Sultan Miah and his signature therein marked as ext. 12 and 12 series respectively.

(47) He further stated that on 09.02.2015 the investigating officer of the case produced another accused namely Md. Osman Goni for recording his confessional statement whereupon he recorded the confessional statement giving all opportunities as provided by the Code. Thereafter, he recorded the confessional statement and collected his signature thereon and he proved the confessional statement and his signature thereon marked as ext. 13 and 13/1 respectively.

He denied a suggestion that he did not record the confessional statement in compliance with the provision as envisaged under sections 164 and 364 of the Code.

(48) PW-17 Constable Md. Abdul Gaffar being No. 726, stated that on 02.02.2015 he was working at Shibpur Police Station under Narsingdi District. He stated that on 02.02.2015, he came to know a dead body of unknown woman was lying on the ridge of a paddy field of Mannan. Thereafter, he came to know the name of deceased of Mahmuda from the team leader of SI Syed Mizanur Islam. On 08.02.2015 he along with his team leader went to arrest the accused. On 09.02.2015, the team leader arrested the accused Md. Osman Goni first from west Kararchar under Shibpur Model Police Station then Shariful Islam Sharif and Sultan were arrested from Kishoregonj District. While Abdul Jalil was along with them. On information the team leader of the raiding party seized three mobile phones and prepared a seizure list. He proved his

signature on it marked as ext. 10/2. He identified the accused on dock.

(49) In cross examination he stated that on 02.02.2015 at 12.10 hours arrested Osman Goni from Kararchar area, thereafter at about 3.30 hours arrested the accused Shafikul Islam Sharif and Md. Sultan Miah. He denied a suggestion that he put his signature at the direction of SI Mizanur Islam.

(50) PW-18 Sree Sanjoy Chandra Sarkar Constable being No. 1283 stated in his examination in chief that on 02.02.2015 he was on special duty with SI Syed Mizanur Islam at about 12.05 hours while received an information from the duty officer of Shibpur Police Station, on going to the place of occurrence found a dead body of unknown woman lying at the ridge of a paddy field and three cut injuries were found

on the lower abdomen of the deceased and collected some bloodstained earth, bloodstained gunny bag, a pair of sandal and a muffler, thereafter the accused made a confessional statement before the Magistrate.

- (51) In cross examination he denied a suggestion that he was deposing falsely at the direction of his team leader SI Syed Mizanur Islam.
- (52) PW-19, Constable Obaidur Rahman was tendered and his cross examination was declined.
- (53) PW-20, Ruma Akhter Constable being No. 35245 stated that she was working in Shibpur Police Station, on 02.02.2015, while her Constable Number was 728 on the date of occurrence S.I. Syed Mizanur Islam having received an information went to the place of occurrence and found a throat cut body of a woman and she helped the

investigating officer for preparing a seizure list and inquest report, seized some alampats from the place of occurrence and prepared a seizure list and collected her signature thereon marked as ext. 3/1.

(54) In cross-examination she stated that she was not expert whether the deceased had been raped or not. She denied a suggestion that the investigating officer prepared the inquest report without knowing to the provisions of law. She denied a suggestion that she was deposing falsely of this case.

(55) PW-21, Md. Hannan Miah, deposed that he was a CNG Driver by profession under Shibpur Police Station on 04.02.2015, he went to the house of Manik Miah after reaching there, he came to know a dead body of a woman was lying in the place of occurrence who used to live as a tenant in the house of Manik Miah. Thereafter, a birth

certificate was seized from the house of Manik Miah and prepared a seizure list thereon and collected his signature on it marked as ext. 3/3. On 09.02.2015 at about 4.10 hours the investigating officer received an information that three accused persons have been arrested. Thereafter, he went to the place of occurrence where they had been arrested by the investigating officer and three mobile set were seized from the possession of the accused persons and prepared a seizure list and collected his signature thereon marked as ext. 10/3.

- (56) In cross examination he stated that a birth certificate recovered from the house of the Manik Miah. But which was not recovered in presence of him. He denied a suggestion that he was a source of police, and that he was deposing falsely of this case.

- (57) PW-22, Manik Khan deposed that Mahmuda used to live in his house as tenant. Mahmuda left from his house about $2/2\frac{1}{2}$ years back saying to attend an important Job. Thereafter the police came his house and asked him to identify the house of the Mahmuda. The witness was declared hostile by the prosecution and was cross examined her by the prosecution.
- (58) He denied a suggestion that accused Shafikul Islam Sharif and Md. Sultan Miah was earlier known to him, that the accused Shafikul Islam Sharif and Md. Sultan Miah went to his house, and that the condemned-prisoners and he used to live in the same area and thereby he was deposing falsely of this case.
- (59) PW-23, Saiful Islam stated that the deceased Mahmuda was the tenant of the house of Manik Miah, on 01.02.2015 the victim

Mahmuda went out his house for taking a photocopy of his passport. Thereafter, he came to know she was killed but photocopy of his passport was recovered from the purse of the deceased. He was declared hostile by the prosecution and then declined to make cross examination by the state.

(60) He denied a suggestion that he was falsely deposing in court to save the condemned-prisoners. He admitted in his cross examination that he did not know the condemned-prisoners and he knew nothing about the incident.

(61) PW-24 Syed Mizanur Islam deposed that he is the investigating officer of this case. He further stated that on 02.02.2015 he was working as a Sub-inspector of Police, at Shibpur Police Station after filing this case, he was entrusted to hold investigation by the order of the Officer in charge of Shibpur

Police Station after being received the responsibility of investigation, he visited the place of occurrence and prepared a sketch map and index. He further stated that he receiving the responsibility of the investigation at the instruction of the officer in charge went to the place of occurrence and prepared an inquest report over the dead body of the deceased, thereafter, he sent the dead body to Narsingdi Sadar Hospital for autopsy. He further stated that he prepared the inquest report over the body of the deceased not by dint of a GD entry No. 56 on 02.02.2015. He identified the inquest report marked as ext. 2 and his signature thereon marked as ext. 2/7 and he recovered some alamats and seized from the place of occurrence and he proved the seizure list and his signature thereon marked as ext. 3/4 and he further proved

the sketch map and his signature thereon marked as ext. 14 and 14/1 respectively and index and his signature thereon marked as ext. 15 and 15/1 respectively. He further stated that a call list was collected and thereafter he collected some wearing apparels of the deceased and prepared a seizure list at the production of constable Aftab. He proved the seizure list and his signature thereon marked as ext. 5 and 5/3 respectively. He further stated that he went to the rented house of the deceased and recovered a birth certificate and prepared a seizure list and his signature thereon marked as ext. 6 and 6/3 respectively. He further stated that on query the house owner of Manik Miah told him that the accused Shafikul Islam Sharif and Md. Sultan Miah used to visit his house regularly and would physical relationship with the

deceased. He further stated that he collected call list and seized the call list and his signature thereon marked as ext. 6 and 6/1 respectively and two pictures of the deceased was attached with his report and his two pictures marked as ext.17 series. On a secret information they arrested condemned-prisoner Md. Osman Goni first, thereafter as per information provided him arrested the accused Shafikul Islam Sharif. He further stated that a knife was recovered from the river as pointing out by the accused Md. Sultan Miah and he seized the alamats and then prepared a seizure list and his signature thereon marked as ext. 4 and 4/3 respectively. Thereafter, he recovered three mobile phones from the possession of condemned-prisoners and prepared seizure list. He proved the seizure list and his signature thereon marked as ext. 10 and

10/3 respectively. Then, he produced three condemned-prisoners before the Magistrate for recording of their confessional statement and he sent an inquiry slip for ascertainment of the name and address of the accused persons. During his investigation he collected post mortem examination report and perused it. He examined in total 29 witnesses and recorded their statement under section 161 of the Code, thereafter he submitted the charge sheet finding prima-facie case against the accused charge sheet being No. 139 dated 14.08.2015 under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) along with under sections 302/201 and 34 of the Penal Code. He identified the three accused persons on dock.

(62) In cross examination on behalf of the all accused persons. He admitted that he did not find any proof of sexual intercourse of her wearing cloths. He further stated in his cross-examination that he got a purse from the deceased during investigation of this case in which he recovered a photocopy of a passport of Saiful and a voter ID card but Saiful did not include as the accused of this case. Thereafter, he arrested three condemned-prisoners. He denied a suggestion that he did not hold the investigation properly, that he submitted a charge sheet letting off real Criminals of this case, that he submitted a false charge sheet against the accused persons, that the confessional statement was extracted by torturing on the body of the condemned-prisoners. He denied a suggestion that there is no similarity with the confessional

statement and the seized alamats recovered from the place of occurrence, that he submitted a false charge sheet against the condemned-prisoners.

(63) This is in all evidences produced on behalf of the prosecution, we have categorized the witnesses for betterment of understanding of this case. PW-1, SI Syed Mizanur Islam is the informant and also the investigating officer. PW-2, PW-3, PW-4 are the formal witnesses and PW-5, PW-6, PW-7, PW-8, PW-9, PW-11, PW-12, PW-13, PW-15, PW-17, PW-18, PW-19, PW-20 and PW-21 were the seizure list witnesses. PW-16 is the Magistrate, who recorded the confessional statement of the accuseds and PW-14 is the Post mortem examination performing doctor on the body the deceased. PW-22 and PW-23 are hostile witnesses. PW-14 is the investigating officer.

- (64) Now the question call for consideration how far the prosecution proved the charge levelled against the condemned-prisoners.
- (65) Heard the submissions of the learned Advocates for both the parties and perused the evidences and materials on record.
- (66) The first contention raised that there is no eye witness of the case and the confessional statements were not recorded in accordance with law and thereby the confessional statements were not true and voluntary. The prosecution has examined as many as 24 witnesses out of 30 charge sheet named witnesses to substantiate the case. All the witnesses are the seizure list and official witnesses. Admittedly there is no eye witness of the case. Three condemned-prisoners had made confessional statement implicating themselves with the killing of the deceased

Mahmuda (hereinafter referred to as deceased).

(67) Moreover, the case entirely rest upon the confessional statement of the condemned-prisoners and also circumstantial evidence of the case. Whereupon, we have perused the evidences of prosecution witnesses and material on record. PW-1 SI Syed Mizanur Islam of Shibpur police station stated that while he was on special duty with police personnel by a GD entry being No. 56 dated 02.02.2015 within Shibpur Police Station, whence he received an information from the duty officer of the police station ASI Jalilur Rahman that a dead body of an unknown woman was lying at Safuria village, and requested him to take necessary action. Then, he along with his police force went to the place of occurrence and found a dead body of an unknown throat cut woman in

the said place of occurrence, on query the witnesses Jahangir, Salam, Delower, Asad, Azmal and Shafiqui who were present in the place of occurrence did not identify the deceased. Whereafter he prepared an inquest report over the cadaver of the deceased and seized some alams from the place of occurrence and sent the dead body of the deceased Mahmuda to Narsingdi Sadar Hospital for holding autopsy. PW-24 Sub-inspector of Shibpur police station Syed Mizanur Islam deposed that on being responsibility of investigation of the case visited the place of occurrence and prepared a sketch map and index of the place of occurrence and recovered a photocopy of passport of one Saiful wherein contained his mobile phone number whereupon he (investigating officer) contacted with the said Saiful and came to know that the victim

deceased Mahmuda was the tenant in the house of Manik Miah. Whereafter he collected the mobile number of the deceased Mahmuda and the rented house owner of Manik Miah, from Saiful. Then he contacted with the house owner of the deceased Mahmuda and found the location of the house of Manik Miah in Kishoreganj District. When he went to the house of Manik Miah and made search in the rented house of Mahmuda in presence of Manik Miah and recovered a birth registration certificate which was seized by a seizure list marked as ext. 6. He further stated that he came to know the whereabouts of the accused Sultan and Sharif and collected their call list, on scrutinize of their call list he came to know the whereabouts of the accused Osman Gani and arrested him from Kararchar under Shibpur police station upon information

gleaning from the arrested accused Osman Gani arrested another accused Shafiqul Islam Sharif from Kishoreganj. On interrogation him came to know the name of accused Sultan Miah and arrested Sultan from the place of Bola under Kishoreganj District. As per ext. 6 the birth registration certificate of Mahmuda, the investigating officer became confirm that the dead body of the deceased was Mahmuda. PW-9 Golzer also confirmed the recovery of birth registration certificate of Mahmuda as he was the witness of the seizure list ext. 6. After securing the arrested of the accused Shafiqul Islam Sharif and Sultan Miah returned back to Shibpur police station. On interrogation the accused Sultan provided information about throwing a knife in the Kalagachia river which was used for killing of the deceased Mahmuda, recovered from

the river of Kalagachia and seized it preparing a seizure list (prepared earlier) ext.

4. Thereafter, he produced three condemned-prisoners before the judicial Magistrate of Narsingdi one by one. PW-16 Alamgir-al-Mamun deposed in court, that on 09.02.2015 he was posted as judicial Magistrate under Chief Judicial Magistrate court, Narsingdi at 12.30 PM investigating officer S.I. Syed Mizanur Islam produced the accused Shafiqul Islam Sharif for recording his confessional statement before the Magistrate when the accused was given three hours time for thinking over the matter. Thereafter he recorded the confessional statement of accused Shafiqul Islam Sharif and collected the signature of the confession form of the accused and put his signature therein. He proved the confessional statement of accused Shafiqul

Islam Sharif and his signature therein ext. 11 and 11 series. He further stated that the accused Shafiqul Islam Sharif made confessional statement in a sound manner. PW-16 further stated that he recorded the confessional statement of accused Sultan Miah and accused Osman Gani one by one giving an opportunity of reflection of time, questioning points as culling out at column- 5 to the confessional statement form. After being satisfied questioning the accused persons he recorded their confessional statement and was given memorandum in this regard. Accused Osman Goni made an application on 12.03.2015 for retraction of his confessional statement that he made confessional statement out of his life threat. But the accused Osman Gani was not given specific suggestion to the confessional statement recording Magistrate that he was

under threat by the police. Even he did not disclose to the Magistrate that he was under threat and coercion by the investigating officer before making his confessional statement.

(68) The accused Shafiqul Islam Sharif made confessional statement before the Magistrate on 09.02.2015 stating that he used to enjoy the deceased Mahmuda in lieu of money at the beginning of his introduction with her as the relation was rancorous with his wife. In course of development his relation, he fell in love with her. At one stage, he decided to marry her, requesting to give her up all nefarious activities. Since then she started to avoid him continuing her business of prostitution whereupon surged an outcry in his mind and decided to kill her and he came out and procured a knife and kept it

his waist. Thereby he managed his friend named Sultan Miah to take her in the place of occurrence. Accordingly, the accused Sultan Miah took the victim (since deceased) in the place of occurrence saying to make physical relationship for an amount of Tk. 2000/- (two thousand). Thereafter, the accused Sultan Miah took the victim Mahmuda at first Itakhola Bazar and then he (Shafiqu) accompanied with them and came to the place of occurrence i.e. at Safuria village on the bank of Kalagachia river, where Sultan first made physical relationship placing her on a field. On fulfillment of Sultan's canal desire, he got down from the body of the victim when Sultan came to the place of occurrence bring gunny bags on the back of the victim with causing smooth physical relationship with deceased. Thereafter, he (Shafiqu) climbed

upon the body of the victim Muhmuda pretending to make physical relationship. In spite of making physical relationship he (Shafiqul) started to dealing with a knife on the throat of the deceased. Thereafter the accused Sultan took the knife from the hand of the accused Shofiqul and dealt a blow on the throat of the deceased, and accused Osman Gani pressed the body and waist of the deceased. In such a situation all the condemned prisoners implicated themselves with the killing of the deceased.

- (69) Condemned-prisoner Md. Sultan Miah also made a confessional statement that he took part in the killing mission of the deceased Mahmuda. He further stated after killing of the deceased the knife was thrown away in the river of Kalagachia and then they washed out besmirching blood from their

hand and body and fled away leaving her dead from the place of occurrence.

(70) Another condemned prisoners Osman Gani made confessional statement before the Magistrate that accused Sultan took a woman in the place of occurrence for fulfillment of their cannal desire. Accordingly, Sultan took the deceased first at Purandiya Bazar, where Shafiqul gave a monkey cap for restraining chilly cold to the deceased. Thereafter, all the condemned-prisoners killed the deceased joinedly. He further stated that he and Sultan took part in the killing mission of the deceased thinking that if she would survive, she would disclose the matter to the member of law enforcing agency.

(71) PW-16 Alamgir-al-Mamun categorically deposed in court that he gave reflection of time of the confessing accused, thereafter,

the confessing accused was given caution provided at column-5 to the confessional statement recording form where upon all the condemned-prisoners voluntarily made confessional statement to him after recording their confessional statement a memorandum was given being satisfied upon questioning the confessing accused that the confessional statement was voluntarily one, which has been given in the confessional statement ext. 11 and 11 series. It is admitted that there was no eye witness of the incident of murder. But some circumstances have come out from the confessional statement of the condemned-prisoners.

(72) PW-6 Delowar seizure list witness stated in his deposition that one monkey cap, two pieces of gunny bags and other some belonging to the deceased was seized by the

investigating officer and thereof prepared a seizure list and collected the signature on it, which has been marked as materials ext. I-VII and PW-7 Syed Abdus Salam deposed in court that a knife was recovered from water of Kalagachia river and prepared a seizure list and collected his signature therein which has been marked as material ext. VII. So, the recovery of monkey cap, gunny bags and a knife by which the murder was committed of the deceased indicates the involvement of the confessing accused with the killing of deceased. It further appears a strong circumstances have been come out from the confessional statement of the condemned-prisoners. Condemned-prisoner Sultan gave a vivid description as to how he took the deceased in the place of occurrence and then the dead body of the deceased was recovered from the place of occurrence i.e. on the bank

of Kalagachia river. The investigating officer did not know as to how the monkey cap and gunny bags came to the place of occurrence on their confessional statement it was revealed to the investigating officer. So, the confessional statement of the condemned-prisoners are strongly supported by the recovery of gunny bags and monkey cap from the place of occurrence. The Judicial Magistrate Alamgri Al Mamun has figured as PW-16 stated in his deposition that reflection of time of the condemned-prisoners were given and also caution (column-5 to the confessional statement recording form) the condemned prisoners for making confessional statement. In spite of that the condemned-prisoners made confessional statement involving them with the killing of the deceased. Thereafter the magistrate (PW-16) gave a memorandum of

voluntariness of their confessional statement. Moreover, the accused Osman Gani retracted his confessional statement by filing an application on 12.03.2015 wherein he stated that he was tortured before making confessional statement whereupon we have perused the confessional statement of Osman Gani and also the evidence of PW-16. It appears from the evidence of PW-16 that he being satisfied recorded his (Osman Gani) confessional statement. He further stated that the confessing accused Osman Gani was quite normal before making confessional statement. He further stated that he recorded his confessional statement of Osman Gani complying with the provision of section 164 and 364 of the Code. On a conspectus of the confessional statement of the condemned-prisoners and circumstantial evidence and the evidence of

Magistrate PW-16 we are of the view of the confessional statement was true and voluntary.

(73) The learned Court below came to a finding of conviction of the condemned prisoner relying only their confessional statement and circumstances came out from the record. In this context we refer a case,

Shamsur Rahman Dhali @ Shamsu Dhali

. Appellant

=Vs=

State

. Respondent

Reported in 12 MLR at page 56,

wherein your lordship observed as under:

“Confessional statement when found voluntary and true can from the sole basis of conviction against the maker”

(74) In the case in hand, the defence could not make any speck in the evidence of PW-16 or the evidence of the investigating officer (PW-

24). The condemned-prisoner Osman Goni retracted his confessional statement by filing an application. But the defence side could not extract any contrary to the evidence of prosecution witnesses. In this connection we refer a decision,

State	
	 Appellant
= Vs=	
Tota Mia	
	 Respondent
Reported in 51 DLR at page -224m	

wherein your lordship observed as
under:

“There is no heard an first rule that a retracted confession must be discard.
Retracted confession can form the basis of conviction if it is found to be true and voluntary.”

(75) In the instant case the accused Osman Goni retracted his confessional statement but could not establish any contrary to evidence of prosecution witnesses.

(76) Next point raised that the prosecution has completely failed to prove the motive of killing of the deceased. Because, the condemned-prisoner Shafiqul Islam Sharif did not share the intention of killing Mahmuda with other two condemned-prisoners and therefore, the impugned judgment is not based on legal evidence. Confessing accused Shafiqul Islam Sharif stated in his confessional statement that he requested to the accused Sultan to bring Mahmuda from Kishoreganj to Shibpur Police Station area. Accused Shafiqul Islam further stated that in his confessional statement that he came out from his house wielding a knife in his waist. So, the carry of a knife by the accused Shafiqul indicates his intention to kill her. Accordingly, he killed her with a knife which was then recovered at the pointing of the accused Shafiqul from

the river nearby the place of occurrence. It appears from his confessional statement that he did not share the intention of killing of Mahmuda to other two accuseds. As per Shafiqul's request to the accused Sultan took the victim (since deceased) in the place of occurrence and made physical relationship with her in terms of money at her consent. Thereafter, he got down from her body the condemned-prisoner Shafiqul Islam Sharif then climbed upon her body and was pretending to make physical relationship with the deceased. At that time condemned-prisoner Shafiqul started to cut her throat by the said knife, while he (Sultan) took the knife from the hands of accused Shafiqul and dealt a blow by using the same knife on the throat of Mahmuda and accused Osman Goni caught hold the waist and body of the Mahmuda. After

confirming her death they fled away from the place of occurrence throwing the knife into Kalagachia river. On a conspectus reading of their confessional statement condemned-prisoner Shafiquel took a knife with him before he had gone to the place of occurrence. But, he did not share his intention with other two condemned-prisoners. Condemned-prisoner Osman stated in his confession that he and condemned-prisoner Sultan took part in the killing mission of Mahmuda. Thereafter they thought if she would survive then she would disclose their nefarious activities to the member of law enforcing agency, out of fear they joinedly killed Mahmuda and their intention of killing was developed on the spot. In this regard we find support of a case,

State

represented by the Solicitor Ministry of
law and justice, Government of
Bangladesh

. Appellant

=Vs=

Montu alias Nazrul Haque and others

. . . . respondents
reported in 44DLR (Ad) 1992,
wherein your lordships observed as
under:

Penal Code (XLV of 1860)

Section 34

“Common intention-pre-plan not
essential ingredient-it is true in this
case there was not pre-plan of the
accused to kill the victim their common
intention to kill developed on the spot.
When they all simultaneously fell upon
the victim as soon as they appeared on
the scene.”

(77) In the case in hand condemned-prisoner
Shafiqul Islam Sharif came out from his
house brandishing a knife on his waist
thereafter their common intention to kill the
victim developed on the spot. So, the fact as
came out before us the condemned prisoners

joinedly killed the victim Mahmuda and thereby the motive of killing of the victim revels from careful reading of their confessional statement made before the Magistrate, As the contention led by the learned counsel for the condemned prisoners have fallen water in view of the confessional statement of the condemned-prisoners. Therefore we are unable to accept their submission of this case.

(78) It has been further contended that the investigating officer was very much interested as the informant and the investigating officer are same person, though more than one sub-inspector was working at the relevant time in the concerned police station.

(79) We have minutely perused the record. It revels from the record that the investigating officer and the informant are same police

officer. The investigating officer could not find out any relative of the ill-fated victim Mahmuda during investigation of the case and the investigating officer was appointed by the officer-in-charge of the concerned police station. The officer-in-charge assigned the informant later investigating officer, which was his discretionary power. Moreover in the instant case none came forward to take Tadbir in favour of the deceased of the case. So, the officer-in-Charge and the investigating officer were being influenced, which has got no leg to stand in view of the fact and circumstances of this case. Over and above the condemned-prisoners could not have established any allegation against the investigating officer, submitted charge sheet against the condemned-prisoners violating the provision of the Code. The allegation raised by the defence counsel,

which is not supported by facts, circumstances and law. Therefore, the submission advanced by the learned counsel for the condemned-prisoners has got no substance to rely on.

- (81) On going through the impugned judgment the learned court below came to a findings of conviction of the condemned-prisoners under section 302 read with section 34 of the Penal Code and sentence thereunder for death and further convicted them under section 201 of the Penal Code and sentenced thereunder for seven years with fine, which was justified convicting condemned-prisoners in the light of the facts, circumstances and confessional statement and also relying upon the post mortem report. But the learned court below was wrong in convicting the accused Md. Sultan Miah @ Sultan @ Jamai Sultan under

section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) for commission of rape of Mahmuda. As per Section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003) the rape as defined under:

৯। ধর্ষন, ধর্ষন জনিত কারণে মৃত্যু ইত্যাদির শাস্তি। (১) যদি কোন পুরুষ কোন নারী বা শিশুকে ধর্ষন করেন, তাহা হইলে তিনি যাবজ্জীবন সশ্রম কারাদণ্ডে দণ্ডনীয় হইবেন এবং ইহার অতিরিক্ত অর্থদণ্ডে ও দণ্ডনীয় হইবেন।

ব্যাখ্যা- যদি কোন পুরুষ বিবাহ বন্ধন ব্যতীত চৌদ্দ বৎসরের অধিক বয়সের কোন নারীর সহিত তাহার সম্মতি ব্যতিরেকে বা ভীতি প্রদর্শন বা প্রতারণা মূলকভাবে তাহার সম্মতি আদায় করিয়া অথবা চৌদ্দ বৎসরের কম বয়সের কোন নারীর সহিত তাহার সম্মতিসহ বা সম্মতি ব্যতিরেকে যৌন সঙ্গম করেন, তাহা হইলে তিনি উক্ত নারীকে ধর্ষন করিয়াছেন বলিয়া গণ্য হইবে।

(82) In the instant case the condemned-prisoner Sultan Miah made physical relationship with the consent of the deceased Mahmuda in terms of money which revels from the confessional statement of Sultan Miah. As per section 9(1) and its explanation (ব্যাখ্যা) of the Nari-O-Shishu Nirjatan Daman Ain,

2000 (as amended in 2003). The facts and circumstances of the case does not come within the preview of section 9(1) of the said law. Because in view of the confessional statement of Sultan the physical relationship was made with the consent of the deceased without applying force. So, there is no allegation of forceful physical relationship with the deceased. But the learned Court below was not justified in convicting the condemned-prisoner Sultan under section 9(1) of the said law, and sentencing him thereunder for imprisonment for life with pay a fine, as such the order of conviction and sentence of the condemned prisoner Sultan under section 9(1) of the said law is not sustainable in law. But in the light of the evidence and materials on record these three accused persons cannot escape from the liability of the offence punishable under

section 302 along with 34 and 201 of the Penal Code. Because the condemned-prisoners killed the deceased brutally in the place of occurrence and left the place of occurrence leaving dead of the deceased. Whereupon the learned court below was justified convicting the condemned-prisoners under section 302, 34 and 201 of the Penal Code and therefore the impugned judgment does not suffer from any illegality or infirmity for interference by this court.

(83) Next contention raised by the learned Advocate for the condemned-prisoners that the condemned-prisoners were not examined under section 342 of the Code properly, because the incriminating evidences and the confessional statement under section 164 of the Code were not brought into the notice of the condemned-prisoners as required under section 342 of the Code and thereby the

condemned-prisoners were prejudiced for not bringing the notice of incriminating evidences of the condemned-prisoners and as such the judgment is not sustainable in law.

(84) On the point of his arguments above we have carefully observed the order by which the condemned-prisoners were examined under section 342 of the Code. Wherein the learned trial court clearly mentioned drawing the attention of the condemned prisoner as regards the confessional statement of the condemned prisoners. In support the learned Advocate for the appellants have referred a case,

Mizanul Islam @ Dablu . . . Appellant

-VS-

The state. . . respondents

reported in BCR (AD) (1990) at page-

325

Wherein your lordship observed as under:

Penal Code (XLV of 1860)

Section 34 CrPC

“To link up the accused with the crime the Sandal was not put to the appellant as a circumstances while he was examined under section 342 of the Code. The recovery of Sandal and the dagger not having been proved the prosecution story based merely for oral evidence cannot be relied upon.

(85) In the case cited above and the instant case are not identical the fact and circumstances of the case with each other. Because in the instant case the condemned prisoners were examined properly drawing the attention of the incriminating evidences appearing against them by the prosecution witnesses and the confessional statement made by

condemned prisoners. The learned Advocate for the appellants could not point out specific incriminating evidences, which was left out by the trial court at the time of examining the condemned-prisoners under section 342 of the Code. So, the submission led by the learned counsel is not based on record.

(86) We have carefully considered the evidence and materials on record and find that there is no eye witnesses of this case. But three condemned prisoners made their confessional statement before the learned judicial Magistrate, and their confessional statement are corroborative in nature with each other as there is no eye witnesses, so, their confessional statement supports the circumstances and material particulars of the case with each other and supports their confessional statement by the post mortem

report ext. 9. Wherefore it can be said their confessional statement was true and voluntary. The prosecution has been able to prove the charge against the condemned-prisoners beyond reasonable doubt and thereby the judgment passed by the learned court below is maintained. In spite of that the condemned prisoners are the first time offender and therefore comparatively young i.e. the condemned-prisoner Shafiqul Islam Sharif aged about 32 years, Sultan Miah @ Jamai Sultan aged about 35 years and Osman Gani aged about 34 years and all the condemned-prisoners are in condemned cell since pronouncement of their judgment in the year 2017. So, considering the fact and circumstances of the case justice would be best served if their sentence is modified from commuting death sentence one to imprisonment for life and also to pay a fine

of taka 20,000/- (twenty thousand) to each in default to suffer simple imprisonment for 6(six) months more each.

(87) We find support of the case,

Nalu Appellant

–Versus–

State respondent

reported in 17 BLC (AD) at page 205.

Mitigating circumstances

However, on the fact and in the circumstances of the case, the mitigating circumstances are

- (i) The condemned-prisoner has no significant history of prior Criminal activity.
- (ii) Youth of the condemned prisoner at the time of commission of the offence.
- (iii) Record reveals that the condemned-prisoner would not be likely to commit acts of violence if released.

(iv) Confinement of the condemned prisoner in the condemned cell for more than 7 years during which period the sword of death has been hanging on his head.”

(88) Wherein their Lordships clearly observed if the fact and circumstances of the case supports the points culling out by our apex court then the court can commute sentence. The prosecution has been able to prove the charge levelled against the condemned prisoners by giving cogent, consistent and trustworthy evidence and the confessional statement supports the prosecution case beyond reasonable doubt.

(89) Considering the facts and circumstances of the case the death sentence is commuted one imprisonment for life as mentioned above and further conviction and sentence awarded by the trial court under section 201

is also maintained. Thus the appeals having no merit.

In the result:-

1. The Death Reference No. 133 of 2017 is rejected.
2. Criminal Appeal No.11119 of 2017,
3. Criminal Appeal No. 6371 of 2023,
4. Jail Appeal No. 431 of 2017,
5. Jail Appeal No. 432 of 2017 and
6. Jail Appeal No. 433 of 2017 all the appeals are dismissed with modification of sentence as mentioned above.
7. Criminal Appeal No. 6371 of 2023 is partly allowed so far as it relates to the condemned-prisoner Sultan Miah @ Jamai Sultan is concerned as regards to the offence punishable under section 9(1) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended in 2003).

We further direct to the Jail authority (where the condemned-prisoners are in jail) to shift them from condemned cell to normal cell at once. The appellants will get the benefit under the provision of section 35A of the Code.

The Office is directed to send down the records along with a copy of the judgment communication at once.

(Justice K.M. Emrul Kayesh)

Syed Md. Ziaul Karim, J:

I agree.